

26NWCP00156 26NWCP00156

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-09-10

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Case Number: 26NWCP00156 Hearing Date: September 10, 2026 Dept: L

JULIE LONTOK, et al. vs PIH HEALTH HOSPITAL -

WHITTIER, A CALIFORNIA NON-PROFIT PUBLIC BENEFIT CORPORATION, et al.

CASE NO.: 26NWCP00156

HEARING: September 10, 2026 @ 9:30

a.m.

#16

TENTATIVE ORDER

The Court CONTINUES the
hearing on the Petition for an Order Authorizing Preservation of Evidence
Pursuant to Code of Civil Procedure § 2035.010, e.t. seq.

The Court will confer with
Petitioner to determine a continued hearing date.

Petitioners to give notice.

Background

On April 22, 2026, Petitioners
Julie Lontok, Spencer Lontok, Simone Lontok, Scarlett Lontok, George Drimilis,
and Kostantina Drimilis (collectively, "Petitioners") filed a petition against
Respondents PIH Health Hospital – Whittier, Ruth Fuentes, and Does 1 to 100. The
petition seeks an order authorizing preservation of evidence pursuant to Code

of Civil Procedure section 2035.010 et. seq. (hereinafter, "Petition").

On August 4, 2026, Plaintiff
named Doe 1 as Respondent Alliance Emergent Care Associates, P.C.

No opposition has been filed as
of September 9, 2026.

Legal Standard

One who expects to be a party in
a cognizable action may obtain pre-litigation discovery for the
purpose of preserving evidence for use in such action. (Code Civ. Proc., §
2035.010, subd. (a).) The methods available for discovery
under section 2035.010 include "[o]ral and written depositions,"
"[i]nspections of documents, things, and places," and "[p]hysical and
mental examinations. (Code Civ. Proc., § 2035.020, subds. (a)-(c).)

"One who desires to perpetuate
testimony or preserve evidence for the purposes set forth in Section
2035.010 shall file a verified petition in the superior court of the
county of the residence of at least one expected adverse party, or, if no
expected adverse party is a resident of the State of California, in the
superior court of a county where the action or proceeding may be filed." (Code
Civ. Proc., § 2035.030, subd. (a).)

"The petition shall set forth all
of the following:

(1) The
expectation that the petitioner or the petitioner's successor in
interest will be a party to an action cognizable in a court of the State
of California.

(2) The present
inability of the petitioner and, if applicable, the petitioner's successor
in interest either to bring that action or to cause it to be brought.

(3) The subject
matter of the expected action and the petitioner's involvement. A copy of any

written instrument the validity or construction of which may be called into question, or which is connected with the subject matter of the proposed discovery, shall be attached to the petition.

(4) The particular discovery methods described in Section 2035.020 that the petitioner desires to employ.

(5) The facts that the petitioner desires to establish by the proposed discovery.

(6) The reasons for desiring to perpetuate or preserve these facts before an action has been filed.

(7) The name or a description of those whom the petitioner expects to be adverse parties so far as known.

(8) The name and address of those from whom the discovery is to be sought.

(9) The substance of the information expected to be elicited from each of those from whom discovery is being sought.”

(Code Civ. Proc., § 2035.030, subd. (b)(1)-(9).)

Discussion

Notice and
Service

“The petitioner shall cause service of a notice of the petition under Section 2035.030 to be made on each natural person or organization named in the petition as an expected adverse party. This service shall be made in the same manner provided for the service of a summons.” (Code Civ. Proc., § 2035.040, subd. (a).) The notice shall be accompanied by a copy of the petition, and service shall be effected at least 20 days prior to the date specified in the notice for the hearing on

the petition. (Code Civ. Proc., § 2035.040, subds. (b)-(c).)

The Petition was served via U.S.

Mail. (See Pet., POS.) The Petition states the following: "Upon assignment of a case number for this petition, Petitioners will serve Respondents' counsel via electronic service and personal service, as appropriate." (Pet., 15:4-5.)

Petitioner filed a Notice of

Hearing for Petition ("Notice") on April 28, 2026. However, the Notice was only served via regular U.S. mail, which is not an acceptable manner for service of a summons. (See Notice, POS.) Further, the Notice does not attach a copy of the Petition. Lastly, there is no indication that the Notice was served on Respondent Alliance Emergent Care Associates, P.C., who was named as Doe 1 on August 4, 2026.

The Court thus finds that the

Petition and Notice of Hearing for Petition were not properly served on all Respondents. The Court thus continues this hearing to allow for service pursuant to Code of Civil Procedure section 2034.040.

Accordingly, the Court CONTINUES

the hearing on the Petition for an Order Authorizing Preservation of Evidence Pursuant to Code of Civil Procedure § 2035.010, e.t. seq.

The Court will confer with

Petitioner to determine a continued hearing date.